

RESIDENTIAL LEASE AGREEMENT

Fixed Term — State of Texas

Landlord:	Dunn Family Cemetery Inc., PO Box 342162, Austin, TX 78734-0037
Tenant:	James Cowan Jr.
Premises:	2605 Cascade Falls Dr, Austin, TX 78738 (Travis County)
Legal Description:	Lot 17, Block A, Lake Pointe Sec. 3, Phase 1
Monthly Rent:	US \$3,500.00 (utilities not included)
Security Deposit:	None
Term:	Twenty-four (24) months, beginning on the Commencement Date below

This Residential Lease Agreement (this "Lease") is made effective as of _____, 20____ (the "Commencement Date"), by and between Dunn Family Cemetery Inc., a Texas corporation (the "Landlord"), and James Cowan Jr. (the "Tenant"). The Landlord and the Tenant are sometimes referred to individually as a "Party" and collectively as the "Parties."

Article 1 – Premises

The Landlord leases to the Tenant, and the Tenant leases from the Landlord, the residence and land located at 2605 Cascade Falls Dr, Austin, Texas 78738, in Travis County, legally described as Lot 17, Block A, Lake Pointe Section 3, Phase 1 (the "Premises"), for use solely as a private residence. The Tenant accepts the Premises in their present condition, subject to the Landlord's repair obligations under this Lease and Texas law.

Article 2 – Term

The term of this Lease is a fixed period of twenty-four (24) months, beginning on the Commencement Date and ending at 11:59 p.m. on the day before the second anniversary of the Commencement Date (the "Expiration Date"), unless terminated earlier under this Lease or applicable law. If the Tenant remains in possession after the Expiration Date with the Landlord's consent but without a new written lease, the tenancy becomes month-to-month on the terms of this Lease, terminable by either Party on one (1) month's written notice under Section 91.001 of the Texas Property Code.

Article 3 – Rent

The Tenant shall pay the Landlord rent of Three Thousand Five Hundred and 00/100 Dollars (US \$3,500.00) per month, due and payable in advance on or before the first (1st) day of each calendar month, without demand or offset. Rent shall be paid by check or electronic transfer to the Landlord at the address or account the Landlord designates in writing. If the term begins or ends on a day other than the first day of a month, rent for that partial month shall be prorated on a daily basis. Payments received shall be applied first to the oldest amount outstanding.

Article 4 – Utilities

Utilities and services — including electricity, water, wastewater, gas (if any), trash collection, cable, and internet — are not included in rent. The Tenant shall place the utilities serving the Premises in the Tenant's name where the provider permits and shall pay all utility charges for the Premises promptly when due.

Article 5 – Security Deposit

No security deposit is required under this Lease. If the Parties later agree in a signed writing that a deposit will be collected, that writing shall state the amount, and the deposit shall be held and returned in accordance with Chapter 92, Subchapter C of the Texas Property Code.

Article 6 – Occupancy and Use

The Premises shall be occupied only by the Tenant and shall be used solely as a private residence and for no business or unlawful purpose. No other person may reside at the Premises without the Landlord's prior written approval. Guests may stay overnight for reasonable periods; any guest remaining more than fourteen (14) consecutive days without the Landlord's written consent is an unauthorized occupant.

Article 7 – Maintenance by Tenant

The Tenant shall keep the Premises clean and sanitary, dispose of garbage properly, perform routine upkeep such as replacing light bulbs and HVAC filters, maintain the yard in a reasonably neat condition unless the Parties agree otherwise in writing, and use all fixtures, appliances, and systems with reasonable care. The Tenant shall promptly notify the Landlord in writing of any condition needing repair, any water leak, and any pest problem.

Article 8 – Repairs by Landlord

The Landlord shall make repairs necessary to remedy conditions that materially affect the physical health or safety of an ordinary tenant, and shall install and maintain smoke alarms and security devices, in each case as required by Chapter 92 of the Texas Property Code. The Tenant shall give notice of needed repairs as provided in Article 15 and shall allow the Landlord reasonable access to make repairs.

Article 9 – Alterations

The Tenant shall not make alterations or improvements to the Premises, paint, or install fixtures without the Landlord's prior written consent, and shall not change or add locks except as permitted by Texas law. Approved alterations become part of the Premises unless the consent provides otherwise.

Article 10 – Landlord's Right of Entry

The Landlord or its agents may enter the Premises (a) with the Tenant's consent, (b) in an emergency threatening life or property, or (c) upon at least twenty-four (24) hours' notice, at reasonable times, to inspect, make repairs, or show the Premises to prospective purchasers or, during the final sixty (60) days of the term, prospective tenants.

Article 11 – Assignment and Subletting

The Tenant shall not assign this Lease or sublet all or any part of the Premises without the Landlord's prior written consent.

Article 12 – Damage; Insurance

The Tenant is responsible for the cost of repairing any damage to the Premises caused by the Tenant or the Tenant's guests, beyond ordinary wear and tear, with amounts due within thirty (30) days after the Landlord delivers a written itemized statement. The Landlord's insurance does not cover the Tenant's personal property; the Tenant is encouraged to obtain renter's insurance.

Article 13 – Quiet Enjoyment

So long as the Tenant is not in default, the Tenant shall have quiet enjoyment of the Premises. The Tenant shall not disturb neighbors, shall comply with all applicable laws, and shall comply with any homeowners' association rules applicable to the Premises, copies of which the Landlord shall provide.

Article 14 – Default; Remedies

The Tenant is in default if the Tenant (a) fails to pay rent when due, (b) materially breaches any other provision of this Lease and fails to cure within a reasonable time after written notice, or (c) uses the Premises for an unlawful purpose. Upon default, the Landlord may terminate the Tenant's right of possession and pursue the remedies available under Texas law, including eviction under Chapter 24 of the Texas Property Code after any legally required notice to vacate, subject to the Landlord's duty to mitigate damages under Section 91.006. The Landlord shall not use lockouts or utility shutoffs except as expressly permitted by the Texas Property Code. The Landlord is in default if it fails to perform a material obligation under this Lease and does not cure within a reasonable time after written notice, in which case the Tenant may pursue the remedies available under Chapter 92 of the Texas Property Code.

Article 15 – Notices

All notices under this Lease shall be in writing. Notices to the Landlord shall be delivered to Dunn Family Cemetery Inc., PO Box 342162, Austin, TX 78734-0037, or such other address as the Landlord designates in writing. Notices to the Tenant shall be delivered to the Premises. Notice may be given personally, by mail, or by electronic means if the receiving Party has agreed to that method, and is effective upon personal delivery, three (3) days after mailing, or upon confirmed electronic delivery.

Article 16 – Early Termination; Holdover

Except as provided by Texas law (including statutory early-termination rights for family violence, certain sex offenses or stalking, and military deployment under Sections 92.016, 92.0161, and 92.017 of the Texas Property Code), neither Party may terminate this Lease before the Expiration Date without the other Party's written agreement. If the Tenant holds over without the Landlord's consent after this Lease ends, the Landlord may pursue possession and damages as provided by law.

Article 17 – Governing Law

This Lease is governed by, and shall be construed in accordance with, the laws of the State of Texas, without regard to conflict-of-law principles. Venue for any dispute arising out of this Lease lies in Travis County, Texas.

Article 18 – Severability

If any provision of this Lease is held invalid or unenforceable, that provision shall be enforced to the maximum extent permitted, and the remaining provisions shall continue in full force and effect.

Article 19 – Entire Agreement; Amendments; Waiver

This Lease contains the entire agreement of the Parties concerning its subject matter and supersedes all prior oral or written agreements concerning it. Any amendment must be in writing and signed by both Parties. A Party's failure to enforce any provision on one occasion is not a waiver of that provision or of the right to enforce it on any other occasion.

Article 20 – Signatures

By signing below, each Party acknowledges having read and understood this Lease and agrees to be bound by its terms as of the Commencement Date. This Lease is not effective until signed by both the Tenant and a representative authorized to act for the Landlord.

LANDLORD — Dunn Family Cemetery Inc.

By: _____

Printed Name: Ray E. Dunn

Title: _____

Date: _____

TENANT

James Cowan Jr.

Date: _____